

Company: «CompanyName»

Insured: «NamedInsured»

Policy Number: «PolicyNum»

Endorsement Effective Date: «PolEffDate»

PUBLIC COMPANY LIABILITY INSURANCE
Advertising, Broadcasting and Internet Activities Exclusion
With Shareholder Exception And Sublimit

It is agreed that:

I. Section Part 5, Common Exclusions of this Policy is amended by the addition of the following:

In addition to the Exclusions listed in the **Coverage Parts**, the **Insurer** shall not be liable under this Policy to pay any **Loss** arising from any **Claim** made against any **Insured** based upon or arising out of:

1. any **Insured's** actual or alleged activities in advertising, broadcasting, telecasting, webcasting, podcasting, cablecasting or publishing over any media, or in researching or producing material to be advertised, broadcast, telecast, webcast, podcast, cablecast, or published over any media;
2. any actual or alleged dissemination, publication, transmission, display or use of the content of any communication of any kind, in, on or via a bulletin board, chat room, blog (including, but not limited to, any video or audio blog) or any other interactive computer program or functionality upon which such expression is fixed;
3. any musical or audio expression that is disseminated, distributed or otherwise available to be downloaded from any **Insured's** website; or
4. any actual or alleged:
 - i. false or misleading advertising;
 - ii. piracy or unfair competition;
 - iii. plagiarism or misappropriation of any information, idea, name, likeness, trade secret or confidential or proprietary information, whether under an implied contract or otherwise;
 - iv. infringement of patent, copyright or trademark, trade name, trade dress, service mark, service name or any other unauthorized use of title;
 - v. libel, slander, oral or written publication of defamatory or disparaging material; or
 - vi. invasion of any right of privacy or publicity.

Provided, however, the above exclusions shall not apply to any **Claim**:

- a. that alleges a violation, by the **Insured**, of any federal, state, local or foreign statute, regulation, or rule relating to securities, (including, but not limited to, the purchase or sale or offer or solicitation of an offer to purchase or sell securities) that is brought by any:
 - i. person or entity, and that is based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any purchase, sale, offer or solicitation of an offer to purchase or sell any **Company** security; or
 - ii. security holder of a **Company** with respect to such security holder's interest in the securities of such **Company**; or
 - b. that is brought, derivatively, on behalf of a **Company**, by a security holder of such **Company**.
- II. However, with respect to **Claims** excluded solely by reason of Section I. of this endorsement and otherwise covered under this Policy:
- a. the **Insurer** shall pay **Loss** not to exceed a maximum aggregate amount of \$«AggLimit» per **Policy Period**, which amount shall be part of, and not in addition to the **Applicable Limit of Liability**;
 - b. notwithstanding the applicable Retention specified in Item 5 of the Declarations, the **Insurer** shall only be liable for those amounts payable as covered **Loss** which are in excess of a Retention of \$«RetentionAmt». The Retention shall apply separately to each **Claim** and shall be paid by the **Insured**; and

Whenever printed in this Endorsement, the boldface type terms shall have the same meanings as indicated in the Policy Form.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.

- c. the **Insurer** shall be liable to pay «InsLiabPcnt» percent of covered **Loss**, excess of the Retention specified in subsection b. above, it being a condition of this insurance that the remaining «InsuredRemPercent» percent of covered **Loss** shall be borne by the **Insureds** at their own risk.

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ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.